

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
ERICA DEFRANCESCO,**SUMMONS**

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of IncidentCITY OF NEW YORK, NYPD POLICE OFFICER
MALCOLM HART, Shield No. 6651, NYPD POLICE
OFFICER AMANDEEP JASWAL, Shield No. 18873, and
NYPD POLICE OFFICERS JOHN AND JANE DOES
NUMBERS ONE THROUGH TEN,Plaintiff designates Kings
County as the place of trial.Defendants.
----- X**To the above named Defendants:**

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 24, 2023

Yours, etc.

Cary London

Cary London, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 203-1090

TO:

CITY OF NEW YORK – 100 Church Street, New York, New York 10038

OFFICER MALCOLM HART, 1 Police Plaza, New York, NY 10038

OFFICER AMANDEEP JASWAL, 83rd Precinct, 480 Knickerbocker Avenue, Brooklyn,
NY 11237

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
ERICA DEFRANCESCO,

INDEX NO:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, NYPD POLICE OFFICER
MALCOLM HART, Shield No. 6651, NYPD POLICE
OFFICER AMANDEEP JASWAL, Shield No. 18873, and
NYPD POLICE OFFICERS JOHN AND JANE DOES
NUMBERS ONE THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.
----- X

Plaintiff, Erica Defrancesco, by her attorneys, Shulman-Hill, PLLC, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 13, 2021, at approximately 8:12 p.m., Plaintiff was present in the vicinity of 535 Bushwick Avenue, County of Kings, State of New York, was subject to an unlawful arrest, and detention by Defendant officers. Plaintiff was deprived of her constitutional, common law, and statutory rights when the individual defendants unlawfully stopped, detained, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the common law and the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff Erica Defrancesco is a resident of the state of New York.
3. NYPD Police Officer Malcolm Hart, Shield No. 6651, was at all times relevant herein an Officer with the New York City Police Department.

4. NYPD Police Officer Malcolm Hart, Shield No. 6651, is being sued in their individual and official capacities.

5. At all times relevant herein, NYPD Police Officer Malcolm Hart, Shield No. 6651, was assigned to the 83rd precinct of the NYPD.

6. NYPD Police Officer Amandeep Jaswal, Shield No. 18873, is and was at all times relevant herein an Officer with the New York City Police Department.

7. NYPD Police Officer Amandeep Jaswal, Shield No. 18873, is being sued in their individual and official capacities.

8. Currently and at all times relevant herein, NYPD Police Officer Amandeep Jaswal, Shield No. 18873 was assigned to the 83rd precinct of the NYPD.

9. NYPD Officers John and Jane Does Numbers One through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. NYPD Officers John and Jane Does Numbers One through Ten are being sued in their individual and official capacities.

11. Currently and at all times relevant herein, NYPD Officers John and Jane Does Numbers One through Ten were assigned to the 69th precinct of the NYPD.

12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

13. The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On October 13, 2021, at approximately 8:12 p.m., plaintiff was present in the vicinity of 535 Bushwick Avenue, County of Kings, State of New York, when the defendant-officers, employed by the NYPD and on-duty, arrested plaintiff without probable cause.

16. At the above date and time, plaintiff was a passenger in a vehicle that was pulled over by the defendant-officers.

17. The vehicle was lawfully registered, and the driver had not violated any penal or vehicle and traffic laws of the State of New York. Nevertheless, defendant-officers activated their emergency lights and sirens and ordered the driver to pull the vehicle to the side of the road.

18. Defendant-officers approached the vehicle and ordered all occupants out.

19. At no point during the incident did plaintiff threaten, curse at, or resist the defendant-officers. Plaintiff complied with all the commands of the defendant-officers.

20. After the occupants were out of the vehicle, defendant-officers grabbed plaintiff, pinned her arms behind his back, and cuffed her wrists with metal handcuffs.

21. Defendant-officers applied the handcuffs around the plaintiff's wrists so tightly that she experienced pain, lacerations, and bruising to his wrists.

22. Defendant-officers then brought plaintiff to the 83rd NYPD precinct, where they photographed, fingerprinted, searched, and interrogated plaintiff.

23. While plaintiff was in custody at the 83rd NYPD precinct, the defendant-officers provided the Kings County District Attorney's Office with false, misleading, and/or incomplete information that plaintiff committed a crime.

24. After several hours at the 83rd NYPD precinct, defendant-officers transported plaintiff to Brooklyn Central Booking (hereinafter "Central Booking"). After several hours in custody at Central Booking, plaintiff was brought before a judge and charged via complaint with various criminal offenses.

25. Plaintiff was released on her recognizance and given a new court date.

26. All criminal charges against plaintiff were dismissed and sealed on April 29, 2022,

27. At no time relevant herein did plaintiff commit a crime or violate the law in any way, nor did defendant-officers have an objective reason to accuse plaintiff of committing a crime or violating the law in any way.

28. At no point did defendant-officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from plaintiff or from a location that was in plaintiff's possession, custody, or control.

29. Nevertheless, plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.

30. Plaintiff suffered continuing significant injury to his hand and wrist from the handcuffs that were applied by defendant-officers.

31. Plaintiff has permanent damage to his head from the assault and battery that was inflicted on him by defendant-officers.

32. Plaintiff continues to suffer emotional trauma and distress from the actions of defendant-officers.

33. Some of the officer-defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against plaintiff.

34. The unlawful assault, battery, and use of excessive force by the individual named defendants caused plaintiff to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

66. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

67. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

68. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

69. As a direct and proximate result of such acts, defendants deprived Plaintiff of their rights under the United States Constitution.

SECOND CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

70. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

71. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

72. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

False Imprisonment

73. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

74. The acts and conduct of the defendants constitute false arrest and false imprisonment. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

75. As a direct and proximate result of such acts, defendants deprived Plaintiff of their rights under the United States Constitution.

76. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights: Excessive Force

77. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

78. The use of excessive force by defendants by, amongst other things, pistol whipping Plaintiff constituted objectively unreasonable physical seizures of Plaintiff in violation of their rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

FIFTH CAUSE OF ACTION

Failure to Intervene

79. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

80. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

81. Defendants failed to intervene to prevent the unlawful conduct described herein.

82. As a result of the foregoing, Plaintiff suffered significant mental and emotional injuries, their liberty was restricted for an extended period of time, they were put in fear for their safety, and they were humiliated and subject to other physical constraints.

83. As a direct and proximate result of such acts, defendants deprived Plaintiff of their rights under the United States Constitution.

84. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

85. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

86. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

87. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

88. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

89. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

90. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of their constitutional rights.

SEVENTH CAUSE OF ACTION
Malicious Prosecution

91. The Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

92. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

93. Defendants commenced and continued a criminal proceeding against Plaintiff.

94. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

95. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

JURY DEMAND

35. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff ERICA DEFRANCESCO demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

DATED: New York, New York
March 24, 2023

Yours, etc.

Cary London

Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza

15th Floor
New York, New York 10004
(212) 203-1090

TO:

CITY OF NEW YORK – 100 Church Street, New York, New York 10038

OFFICER MALCOLM HART, 1 Police Plaza, New York, NY 10038

OFFICER AMANDEEP JASWAL, 83rd, 480 Knickerbocker Avenue, Brooklyn, NY
11237

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York

March 24, 2023

Cary London
CARY LONDON, ESQ.